

2025 PLJ 144

[Law Note (Civil)]



UMER NAWAZ and another

versus

**DEPUTY DIRECTOR FIA CYBER CRIME CIRCLE RAWALPINDI ZONE, CYBER
CRIME CIRCLE OFFICE, RAWALPINDI and 5**

**JUDICIAL AND EXECUTIVE RESPONSE TO THE DISSEMINATION OF
BLASPHEMOUS AND DEROGATORY CONTENT ON SOCIAL MEDIA.**

(a) Constitution of Islamic Republic of Pakistan, 1973---S.Article 2, S.Article 2A, S.Article 199, S.Article 227; Pakistan Penal Code---S.Sections 295 to 295-C; Prevention of Electronic Crimes Act, 2016---S.Section 9, S.Section 37; Criminal Procedure Code---S.Section 154; Removal and Blocking of Unlawful Online Content (Procedure, Oversight and Safeguards) Rules, 2020---S.Rule 5(1), S.Rules 12 and 13--
-Judicial and executive response to the dissemination of blasphemous and derogatory content on social media.---

The court reiterated strict adherence to previously issued guidelines in leading judgments, mandated compliance with an actionable joint plan involving all relevant public departments to curb online blasphemy, and directed enhancement of investigation, interdepartmental coordination, and awareness to prevent and handle religiously offensive online content.

The government has a constitutional and legal obligation to actively protect all religions and prevent the misuse of social media for blasphemy and religious hate, through comprehensive enforcement, inter-agency coordination, legislative amendment, public education, and the creation of effective institutional structures, as strictly directed by courts and reinforced by a multi-agency action plan.

Relied upon: 2012 CLC 1300; 2018 PCr.LJ 1133; 2021 MLD 1633; PLD 2017 Islamabad 218

Referred to: 2012 CLC 1300; 2018 PCr.LJ 1133; 2021 MLD 1633; PLD 2017 Islamabad 218

Petitions disposed of with directions to strictly comply with guidelines from prior judgments, implement the joint action plan by relevant Ministries and Departments, submit compliance reports quarterly, enhance FIA capacity for cyberblasphemy, establish oversight to avoid false cases, and designate 15th March as Namoos-e-Rasalat Day.

Through the instant petition moved under Article 199 of the Constitution of Islamic Republic of Pakistan, 1973, Umer Nawaz and Amir Zafar (petitioners) have raised serious questions of public importance through pleadings and arguments which can be summarized to the effect that posts are being uploaded on different social media platforms through which blasphemous substance is being disseminated to ridicule holy personage and to mock the principles of Islam. During arguments advanced on 06.09.2022 Khan Kamran Idrees, Advocate raised various contentions which were incorporated in the order of even date. For the clarity of proposition, a portion of order dated 06.09.2022 is being reproduced hereunder:

□It is contended by learned counsel that on the social media sacrilegious campaign against Holy Prophet(ﷺ) is being carried out in an organized manner whereby His purity is being polluted through obscene posts and all these activities are being carried out through WhatsApp groups and posts on the social media; that though various applications were moved before the FIA Cyber Crime Wing, Rawalpindi but no step has been taken over it; that even the Pakistan Telecommunication Authority is paying a deaf ear response to such nefarious activities which are designed to jolt the foundation of our society as well as of the country. With these submissions, learned counsel urged that proper directions be issued to respondents for taking stringent actions against the delinquents and also to take appropriate steps for ensuring that such blasphemous posts are removed from the social media.□

2. There is no need to shed light upon the point that the grievance voiced through instant petition, the detail of which tentatively reflects in the preceding para, is serious and can be placed on much higher pedestal in reference to its sensitivity. Accordingly, initially in order to ascertain the truth behind the contentions raised on behalf of the petitioners, notices were issued to Director Cybercrime Rawalpindi (Respondent No. 3), Federal Secretary Ministry of Information Technology (Respondent No. 5) and Pakistan Telecommunication Authority through its Chairman (Respondent

No. 6). On later dates, different officials from FIA Cybercrime Wing and Pakistan Telecommunication Authority appeared before the Court and confirmed that social media platforms are being used for uploading religious hate material, including blasphemous substance at large scale and submitted written reports as well. The volume in which such sacrilegious substance is being uploaded on social media can well be gauged from para No. 30 of the report submitted on behalf of Pakistan Telecommunication Authority (Respondent No. 6). In the given para, it is mentioned that till 22nd November 2022, the PTA upon receipt of information from various sources and proactive search processed for blocking/removal a total number of 92703 links pertaining to sacrilegious contents. It was admitted by PTA in clear terms that nefarious activity of uploading sacrilegious material on social media has gained a noticeable and alarming surge in the recent past. On the other hand, it was informed

on behalf of FIA Cybercrime Wing that the sinister campaign of uploading derogatory material on social media has gained skyrocketed increase and the number of delinquents is in hundreds of thousands. According to FIA Cybercrime Wing such derogatory posts are not confined only to the extent of religion of Islam rather Christianity, Hinduism and Sikhism are also being mocked, ridiculed and desecrated. Before inching any further, I deem it appropriate to mention here the importance of Quran in Islam, the Bible and Cross in Christianity, Bhagavad Gita in Hinduism and Guru Granth Sahib in Sikhism. Quran, according to the faith of Muslims, is a text in the words of Allah Almighty revealed upon the Prophet Muhammad (ﷺ) and provides indispensable guidance, purpose of life and roadmap for worship to its followers. The Cross is a central symbol in Christianity, thus is a sign both of Christ and of the faith of Christians. According to Christian faith, the Bible is in the words of God and provides guidance and wisdom to the Christians and helps them in structuring relationship with God. As regards Bhagavad Gita it has its own importance in Hinduism and is considered by the followers as guide to spiritual knowledge and the ultimate reality of life. It is treated as one of the most important and sacred texts of Hinduism. So far as Guru Granth Sahib is concerned, it is the holy religious scripture of Sikhism used by the believers during worship. It was painfully observed that through different social media platforms objectionable posts are being uploaded not only against religion of Islam but also against Christianity, Hinduism and Sikhism targeting holy personage, Quran, Bible, Cross, Bhagavad Gita and Guru Granth Sahib. Beyond everything, very objectionable posts were found uploaded on the social media whereby national ideology and sensitive State departments including armed forces are targeted. The hate material uploaded through these posts on social media against all the religions particularly targeting Islam is so inflammatory that its detail cannot be penned down in the instant judgment. It will not be an overstatement that even a moderate religious follower of Islam, Christianity, Hinduism and Sikhism after witnessing these posts/material is destined to have restless nights. These posts can even ignite fury and rage in the hearts of believers of respective religions which can lead to violent protests and can even destabilize our country.

3. The issue raised through the instant petition of public importance is not brought to the notice of superior Courts for the first time, rather has been agitated repeatedly in the past. In the case titled as *Islamic Lawyers Movement through Tahir Farooq alias Allah Bakhsh Leghari v. Federation of Pakistan through Secretary Establishment, Government of Pakistan, Islamabad and 3 others* (2012 CLC 1300) this Court after being apprised about uploading of sacrilegious material on social media platforms laid down following guidelines for immediate compliance:--

□(i) that Inter Ministerial Committee constituted by the then Prime Minister in the year: 2000 would keep a vigilant eye on the websites and in the eventuality of any objectionable material concerning the religious faith of any group would take prompt action before it reaches to the public-at-large and in case of failure the concerned persons would be taken to task while initiating disciplinary action against them and the government would also include some members from amongst the private persons in the said committee;

(ii) that the Crisis Cell working in the Services Division ICT Directorate and Enforcement Division shall be used as a tool to unearth such material and to block

the relevant website/URL forthwith and in case of failure stern action be taken against the delinquents;

(iii) that the government shall agitate the matter before the United Nations through its permanent delegate for legislation at international level against such acts and convey the reservations of the Muslims of the world in general and that of Pakistan in particular regarding the publication of such objectionable material;

(iv) that the government shall bring matter before the Organization of Islamic Countries (OIC) in consultation with the other member countries and would adopt a clear-cut via media to halt repetition of such incidents;

(v) that the government shall also see the viability of permanent blocking of the websites involved in unethical and illegal activities in the event that such material is again presented on internal;

(vi) that the government shall strive for legislation in this regard on the lines already adopted by other Islamic countries in addition to China;

(vii) that the government shall impart awareness amongst the public through different modes e.g. print and electronic media regarding use and misuse of such like websites; and

(viii) that in case of repetition the government shall sue concerned authorities before the appropriate forums. □

4. In case reported as *Muhammad Ayoub v. Federation of Pakistan through Secretary, Ministry of Interior, Islamabad and 6 others* (2018 PCr.LJ 1133) it was brought to the notice of the Court that through some Facebook accounts inflammatory and blasphemous material is being uploaded and accordingly direction was sought for initiation of legal action against the delinquents. Accordingly, after examining every aspect of the case and hearing the Director General Pakistan Telecommunication Authority along with officials of FIA, following directions were issued:

i) State functionaries shall keep in mind that PTA is an independent body in the light of its statute and government at the most could issue instructions, that too within the parameters of law.

ii) A bill be tabled before the Parliament for deliberations and decision about:

a) Amendment in Section 37 of PECA to authorize PTA to block information system in case service providers fail to remove blasphemous content;

b) Procedure for right of appeal, revision, review be provided to the individuals or the system operators whose accounts, pages or systems are blocked by the authorities;

c) Where in Section 9 of PECA, punishment for offences relating to terrorism, proscribed organization, etc. has been provided, punishment of Sections 295 to 295-C, P.P.C. may also be introduced.

iii) Rules be framed under PECA, which are though required, yet have not been framed. This exercise must be completed within three months from today;

iv) A cell in the foreign ministry shall be created to keep all the Islamic countries abreast of the efforts and steps taken pursuant to the above referred meeting of the Ambassadors which was chaired by the Federal Interior Minister, Pakistan;

v) The Government shall adopt all necessary measures for enhancing technical expertise and equipments of PTA authorities;

vi) It appears that FIA which is to investigate such like matters is not equipped with complete devices and team of experts, hence, necessary steps including finance facility, be provided.□

5. In the case of *Luqman Habib and others v. Federation of Pakistan and others* ([2021 MLD 1633](#)), through five different writ petitions, grievance was laid before the Court that highly objectionable contents totally against injunctions of Islam, against Holy Prophet (ﷺ), his companions is being disseminated through social media, particularly on Facebook and initiation of proper measures required to curb such acts was sought. The Court disposed of above-mentioned case with following directions:

□Government shall establish a cell under PTA wherein I.T. Experts and Islamic Scholars must be included as members. The said cell shall keep an eye on websites as well as social media programs. Wherever any objectionable content is observed as defamatory the same shall be referred to the Islamic Scholars and if it is found that any act or omission in the said content violates any provision of law within Pakistan, is against the beliefs of the Muslims and against the integrity of State, adequate steps shall be taken for blockage of the relevant website/social media page, etc. and simultaneously legal proceedings against the delinquent be initiated.

Under Article 2-A of the Constitution protection and protection of Islam is duty of the Government and for this purpose the Government shall establish an official website/portal where authentic copy of Holy Book (Qura□n) with translation by known scholars along with □Ahadith books, all laws relating to *Khatam-e-Nabuwat*, articles written on the subject and decisions of the superior Courts on this specific issue shall be made available on the same website for awareness of the general public. A window/portal shall also be established where the known Islamic Scholars shall answer the queries raised by anyone about the injunctions of Islam and *Khatam-e-Nabuwat*. The Government of Pakistan shall establish a specific portal on the said website where details of all authentic Islamic websites/pages shall be introduced for guidelines for the whole world especially the Muslim Ummah.

As per Rule 5(1) of Removal and Blocking of Unlawful Online Content (Procedure, Oversight and Safeguards) Rules, 2020, the Authority has been empowered to initiate proceedings only if a complaint is filed before it in terms of Sections 5(2) and 5(3). While if there is any material in violation of Pakistani Law especially, PPC, which itself is a cognizable offence in view of Section 154, Cr.P.C. this Court is of the view that filing of complaint is not mandatory rather it is the duty of the Authority to initiate proceedings at its own motion. In this respect it is suggested that relevant rules may be amended accordingly.

Whenever any complaint is lodged about the offence involving Islamic Injunctions/*Khatam-e-Nabuwat* and *Namoos-e-Sahaba*, proceedings on such complaint shall be made available on the website/portal and updated step by step so

that the public must know adequate and proper measures are being taken at highest level to procure Islamic injunctions. This will ultimately result in controlling the sentiments of general public.

Hazrat Muhammad Mustafa is the last Prophet and to highlight this aspect, specific chapter shall be inserted in Textbooks of Urdu and Islamiyat from primary to master levels.

When such website is established by the Government, it must be advertised on media and also on notice boards of Higher Education Commission, Public and Private Universities, Colleges and other officially run institutions so that maximum publicity is made in order to achieve the all-out benefit out of it.

Social media providers must be compelled to establish their sub offices within the country (Pakistan) so that timely interaction could be made in case of any violation of Islamic injunctions or of any Article of Constitution of Pakistan is observed/found, simultaneously enabling our institutions to lay hands on them in case they are directly or indirectly found responsible for such violation.□

6. In case reported as [سلمان شاہد بنام وفاق پاکستان بذریعہ وزارت داخلہ و 6 دیگر \(PLD 2017 Islamabad 218\)](#) the Islamabad High Court after being apprised about these sacrilegious activities on social media issued following directions:

7. During the pendency of instant constitutional petition, comments and reports were requisitioned from different departments including FIA Cybercrime, Pakistan Telecommunication Authority, Ministry of Information Technology, Ministry of Broadcasting, Ministry of Religious Affairs, Ministry of Law & Justice and PEMRA. The purpose of requisitioning the comments/reports from the above-mentioned departments/Ministries was primarily to assess the strategy devised to implement the directions of different Courts highlighted in preceding paras. Unfortunately, it turned out that though various suggestions were given by different departments for eradicating the evil of cyber blasphemy but no satisfactory practical steps are found to have been taken by the Government. After going through the comments/reports and providing opportunity of hearing to all concerned, it was noticed that each Department/Ministry has its own scope of working, making it difficult for officials to interact with other organs of the State conveniently to devise a plan for giving effect to the directions given in cases of *Islamic Lawyers Movement*, *Muhammad Ayoub*, *Luqman Habib* and *Salman Shahid* (supra). Accordingly, it was considered appropriate to obtain a joint report along with suggestions from all the concerned Departments. On 28.03.2023 it was informed that for the submission of report a joint meeting of officials from Ministry of Information & Broadcasting, Ministry of Information Technology, Higher Education Commission, Federal Secretary Education, Secretary Government of Punjab Education Department, PEMRA and FIA to be chaired by Federal Secretary Ministry of Religious Affairs and Interfaith Harmony is scheduled. On 02.06.2023 the draft of proposed joint action plan was placed before this Court which after tentative perusal was returned for finalization. On a later date, the Action Plan prepared by the officials of Ministries/Departments, referred above, was submitted in the Court. The Action Plan so submitted is being reproduced hereunder:

Sr. No.	Ministry/ Division/ Department/ Organization	Action to be taken
1.	Ministry of Religious Affairs and Interfaith Harmony	□ Provide material for awareness of general public to prevent them from misuse of Social Media and to hinder them from taking part in blasphemous crimes. □ Create a focal group for drafting messages consisting of representatives from M/o Religious Affairs, Council of Islamic Ideology, FIA and PTA. □ Identify Master trainers from Ulema and Mashaikh. □ Engage National Commission of Minorities. Sensitize religious minorities through minority days, conferences and seminars through Interfaith Harmony Wing. □ Recommend a board of Ulema to M/o Information and Broadcasting to engage them in media debate on the subject of prevention of spread of blasphemous material on Social Media.
2.	Ministry of Information and Broadcasting	□ Disseminate audio, video and print messages and articles for awareness of general public. □ Issue directions to PEMRA to broadcast messages/content provided by Ministry of Religious Affairs. □

Sr. No.	Ministry/ Division/ Department/ Organization	Action to be taken
		Arrange training session for columnists/writers, anchors, social media influences and editors. □ Broadcast the material provided by Ministry of Religious Affairs on Radio to run public awareness campaign. □ Broadcast the interview of Ulema in electronic and social media. □ Any other necessary support from publicity/propagation point of view.
3.	Ministry of Federal Education	□ Arrange training sessions in all educational institutions through teachers (including schools, colleges) and universities through HEC for creating awareness regarding prevention of misuse of social media. □ Mentor the kids and raise awareness through lectures to prevent them from misuse of Social Media and to hinder them from taking in blasphemous crimes on Social Media. □ Guide parents through Parent Teacher Meetings (PTMs) and parents □ teacher associations. □ Prepare master trainers in teachers. □ Sensitize the Presidents and General Secretaries of all

Sr. No.	Ministry/ Division/ Department/ Organization	Action to be taken
		Wafqas of Madrassas on regular basis from time to time on all issues related to misuse of social media and for awareness of general public to prevent them from misuse of social media and to hinder them from taking part in blasphemous crimes on Social Media.
4.	Higher Education Commission	□ Arrange training sessions in all educational institutions/universities through HEC for creating awareness regarding prevention of misuse of social media. □ The Seerat Chairs under High Education Commission be used for training of Master Trainers. □ Faculty of Islamic Studies in Sheikh Zaid Centers in Karachi, Lahore and Peshawar should be actively used for the purpose of spreading awareness on the subject.
5.	M/o Information Technology	□ Launch awareness campaign on social media as per PECA Act, 2016. FIA and MoRA will provide the content/material. □ Process amendment in the PECA, Act 2016 for applicability and

Sr. No.	Ministry/ Division/ Department/ Organization	Action to be taken
		enhancement of punishment for those involved in blasphemous crimes on social media. ☐ Create parental Control application and/or such policy/technical expertise having the capability to filter unethical and objectionable material from digital and social media platforms.
6.	Federal Investigation Agency	☐ Sensitize the stakeholders about types of such heinous crimes <i>i.e.</i> blasphemy on social media. ☐ Indicate and specify the areas and fields where such crimes are being committed so that to increase the focus to generate awareness in those specified areas.
7.	M/o Law and Justice	☐ For legal support regarding applicability and enhancement of punishment for those involved in blasphemous crimes on social media.
8.	Council of Islamic Ideology	☐ Vet messages and religious content provided by Ministry of Religious Affairs. ☐ Identify Ulema. ☐ Arrange Research Seminars on the subject. ☐ Any other necessary recommendation/support

Sr. No.	Ministry/ Division/ Department/ Organization	Action to be taken
		from religious point of view.
9.	Pakistan Telecommunication Authority	☐ Run awareness campaign as per rule 12 and 13 of the Removal and Blocking of Unlawful Online Content (Procedure, Oversight and Safeguard Rules 2021) for education and awareness of general public through print, electronic and social media in collaboration with M/o Information and Broadcasting.
10.	Ministry of Human Rights	☐ Hold seminars in schools, colleges and universities in collaboration with Ministry of Federal Education and Professional Training and Higher Education Commission to protect them from the misuse of social media and save them from being a part of heinous crimes related to blasphemy.

PROVINCIAL DEPARTMENTS

Sr. No.	Ministry/Division /Department/ Organization	Action to be taken
1.	Provincial Auqaf and Religious Affairs Departments	☐ Provide material for awareness of general public to prevent them from misuse of Social Media and to hinder

Sr. No.	Ministry/Division /Department/ Organization	Action to be taken
		them from taking part in blasphemous crimes on social media. ☐ Create a Focal group for drafting messages. ☐ Identify Master trainers from Ulema and Mashaikh. ☐ Engage Minorities and sensitize religious minorities through minority days, conferences and seminars through interfaith Harmony Wing. ☐ Recommend a board of Ulema to M/o Information, to engage them in media debate on the subject of prevention of spread of blasphemous material on Social Media. ☐ Hold regular meetings with prominent Ulema and sensitize them on all issues related to misuse of social media and for awareness of general public to prevent them from misuse of Social Media and to hinder them from taking part in blasphemous crimes on Social Media.
2.	Provincial Information Department	☐ Disseminate audio, video and print messages and articles

Sr. No.	Ministry/Division /Department/ Organization	Action to be taken
		for awareness of general public. ☐ Issue directions to PEMRA to broadcast messages/content provided by Ministry of Religious Affairs. ☐ Arrange training session for columnists/writers, anchors, social media influencers and editors. ☐ Broadcast the material provided by Ministry of Religious Affairs on Radio to run public awareness campaign. ☐ Invite Ulema in T.V.talk shows to talk about the issue. ☐ Broadcast the interview of Ulema in electronic and social media. ☐ Any other necessary support from publicity/propagation point of view.
3.	Provincial Education Department	☐ Arrange training sessions in all educational institutions through teachers (including schools, colleges) and universities through HEC for creating awareness regarding prevention of misuse of social media. ☐ Mentor the kids and raise awareness

Sr. No.	Ministry/Division /Department/ Organization	Action to be taken
		through lectures to prevent them from misuse of Social Media and to hinder them from taking part in blasphemous crimes on Social Media. □ Guide parents through Parent Teacher Meetings (PTMs) and parents □ teacher associations. □ Prepare master trainers in teachers.
4.	Provincial Information Technology Departments	□ Launch Awareness campaign on social media. □ Create Parental Control application having the capability to filter unethical and objectionable material from digital and social media platforms. □ Make such policy/technical expertise which can develop a system that can filter the blasphemous content.
5.	Home Departments in collaboration with FIA	□ Assist and support FIA. □ Sensitize the stakeholders about types of such heinous crimes <i>i.e.</i> blasphemy on social media. □ Indicate and specify the areas and fields where such crimes are being committed so

Sr. No.	Ministry/Division /Department/ Organization	Action to be taken
		that to increase the focus to general awareness in those specified areas. □ Arrange awareness/training sessions for police on blasphemous crimes on social media.

It manifests that different organs of the State realized the sensitivity of the issue and accordingly, the officials from the concerned Ministries and Departments prepared a plan with consensus for initiating action in positive direction for countering the menace of religious intolerance, sectarian differences and above all the horror of blasphemy on social platforms or otherwise. The point which deserves appreciation from the proposed Action Plan pertains to equally protecting the religious sentiments of Muslims as well as of Christians, Sikhs, Hindus and other minorities. Training sessions in educational institutions will definitely enlighten the youth regarding the importance of interfaith harmony and other issues of national security. Besides that, the impeccable implementation of the Action Plan will sensitize the general public about the ongoing blasphemy on social media which is nothing less than cyber terrorism and its impact on their lives in accordance with injunctions of Islam. I have intentionally opted not to mention in detail the injunctions from Quran and Sunnah regarding the blasphemy as the same were meticulously highlighted in the Salman Shahid's case authored by Shaukat Aziz Siddiqui, J. as his lordship then was. During the pendency of this petition, PEMRA and Ministry of Information and Broadcasting also reacted to the issue of blasphemy actively by telecasting and broadcasting some programmes as awareness campaign. Though the radio channels and PTA put best of their efforts in making the awareness campaign as success but the electronic media remained little short of the expected efforts.

8. It is equally important to mention here that Ministry of Religious Affairs mentioned in the report that on 10.07.2023 a meeting was arranged in PTA Headquarters Islamabad which was participated by Dr.Qibla Ayyaz, Chairman Islamic Ideology Council, Allama Tahir Mehmood Ashrafi, Chairman Pakistan Ulma Council, Dr.Ikram-ul-Haq Yasin, Secretary Islamic Ideology Council, Dr.Inam Ullah D.G., Research Islamic Ideology council and numerous other notable Islamic Scholars and persons. After deliberating in detail upon the issue highlighted in the instant petition, the participants came forward with the following suggestions:

9. The emergence of computer and the internet completely revolutionized and revamped the functioning of official works, educational activities and even the commercial assignments. It opened new avenues of learning and imparting education which changed the dawn of modern world. At the same time, this technological era faced the horrors of cybercrime which on occasions is also called as e-crime or net-crime. The world is rapidly expanding technologically and so is the case of cybercrime

which has many faces like identity thefts, hacking, financial frauds, blackmailing, pornography and above all offences against religions. All the afore-mentioned felonies are committed, more or less conveniently, as the wrongdoer has the advantage of concealing his identity and not to leave his footsteps behind the crime. The task of lifting veil from the identity of such criminals is left to be performed only by the investigators having expertise in the cybercrime. The uncontrolled evil of cybercrime unfortunately has the potential to destabilize a society like ours which comprises upon believers of different religion, faith and sect, mostly out of whom are not well educated. After examining the entire material pertaining to blasphemy on social media, I am constrained to observe here that if not immediately eradicated, this evil is likely to erode the Islamic identity of this country which is adequately protected through the preamble, Articles 2, 2A & 227 of the Constitution of Islamic Republic of Pakistan, 1973. At the same time, if the religious faith of the followers of other religions is permitted to be mutilated by these cybercrime miscreants, it will be injustice on part of the State in performing its obligation towards protecting the minorities like Christians, Sikhs and Hindus etc. Even otherwise, we have a chequered history of riots emanating from sectarian intolerance and religious ignorance. Even in the recent past, we have witnessed numerous unpleasant incidents lowering the chin of whole nation which includes Shanti Nagar Riots of 1997, Gojra Riots of 2009, lynching of two Christian brothers in Sialkot in 2010, Joseph Colony Lahore Riots of 2013, Mashal Khan Lynching in Mardan University in 2017, Lynching of Priyantha Kumara in Sialkot on 03.12.2021, Jaranwala Riots of 2023, Rahimyar Khan Temple Vandalism of 2022 and many more. The root causes of some of these riots were rumours and intentional or unintentional false stories pertaining to religious faith. During these riots, many lost their lives, some of them received incurable mental and physical traumas, besides that public and private properties worth billions of rupees were damaged. Unfortunately, the one common point discerning from all these riots and attacks is the dogmatic approach of law enforcement agencies and the legal deficiencies in the application of law.

10. For what has been discussed above, the instant petition is disposed of in the following terms:

- (i) The guidelines and instructions given in the cases of Islamic Lawyers Movement (2012 CLC 1300), Muhammad Ayoub (2018 PCr.LJ 1133), Luqman Habib (2021 MLD 1633) and Salman Shahid (PLD 2017 Islamabad 218) be complied by giving them practical effect.
- (ii) The Joint Action Plan submitted by different Ministries and Departments, the detail of which is mentioned in Para-7 above be strictly followed and a compliance report about the steps taken in pursuance thereof be submitted in the office of Additional Registrar (Judicial) of this Court after every three months.
- (iii) Immediate steps be taken for implementing the suggestions highlighted in para-8 taken in a joint meeting of PTA and Islamic Ideology Council.
- (iv) In order to discourage false cases of blasphemy/religious hate material it is desirable that at Divisional level a team of Islamic scholars from known Islamic sects be constituted. Each case of blasphemy, sectarian hatred and dissemination of anti-religion hate material be placed before such Islamic scholars so as to exclude the

possibility of registration of false case on account of some external pressure. A pressing need is felt to mention here that most of the delinquents involved in the lynching of Sri Lankan Priyantha Kumara in Sialkot admitted during investigation that they know nothing about the nature of blasphemy committed by him. In my considered view the constitution of such team of Islamic scholars will eliminate the possibility of false implications in such cases and at the same time will not let the actual culprits go scot-free.

(v) The numerical strength of the officials posted in FIA to deal with cybercrimes is not compatible with the number of cases registered. Due to this reason, the investigations of sensitive cases including the blasphemy, financial crimes, blackmailing etc. are being delayed indefinitely. The Federal Government is directed to enhance the numerical strength of FIA officials and to establish a blasphemy cell separately to deal with relevant cases.

(vi) The General Assembly in its 76th Session held on 15.03.2022 specified 15th March as a day to combat Islamophobia. Accordingly, the Federal Government and Punjab Government are directed to observe 15th of March of each year as Namoos-e-Rasalat Day. It is expected that on the given date programmes will be arranged for imparting information about the Holy Prophet (ﷺ) and for enlightening different aspects of his life.

(Y.A.) Petitions disposed of